

Passengers (Change Of Names) Rules, 1990

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Union of India - Act

Passengers (Change Of Names) Rules, 1990

UNION OF INDIA

India

Passengers (Change Of Names) Rules, 1990

Rule PASSENGERS-CHANGE-OF-NAMES-RULES-1990 of 1990

Published on 16 August 1990

Commenced on 16 August 1990

[This is the version of this document from 16 August 1990.]

[Note: The original publication document is not available and this content could not be verified.]

Passengers (Change Of Names) Rules, 1990

Published vide Notification No. G.S.R. 708(E), dated 16th August, 1990.

1564.

G.S.R. 708(E), dated 16th August, 1990.- In exercise of the powers conferred by clause (c) of sub-section (2) of Section 60 of the Railways Act, 1989 (

24 of 1989

) read with Section 22 of the General Clauses Act, 1897 (10 of 1897), the Central Government hereby makes the following rules namely :-

1.

Short title and commencement.-

(1)

These rules may be called the Passengers (Change of Names) Rules, 1990.

(2)

They shall come into force on the date of the commencement of the Act.

2.

Definitions.-

In these rules unless the context otherwise requires :-

(a)

"Act" means the Railways Act, 1989 (24 of 1989

) ;

(b)

'Appropriate authority' means an authority approving the official tours of the Government servant concerned ;

(c)

'Government servant' means any person serving under the Central or State Government ;

(d)

'Member of the family' means father, mother, brother, sister, son, daughter, husband or wife ;

(e)

'Passenger' means a person travelling on a ticket or on a valid pass;

(f)

'Reserved ticket' means a journey ticket on which a berth or seat has been reserved;

(g)

Words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

(1)

Save as otherwise provided in sub-rule (2) a berth or a seat reserved in the name of a person shall be used only by that person and shall not be transferable to any other person.

(2)

Any railway servant authorised in this behalf by a railway administration may permit the change of name of a passenger having a seat or berth reserved in his name in the following circumstances, namely:-

(a)

Where the passenger is a Government servant proceeding on duty and appropriate authority makes a request in writing 24 hours before the scheduled departure of the train that the reservation made in the name of the Government servant be transferred to another Government servant proceeding on duty;

(b)

Where the passenger makes a request in writing 24 hours before the scheduled departure of the train that the reservation made in his name be transferred to another member of his family ;

(c)

Where the passengers are students of a recognised educational institution and the Head of the institution makes a request in writing 48 hours before the scheduled departure of the train, that the reservation made in the name of any student be transferred to any other student of the same institution :

Provided that any such request for change shall be granted only once : Provided further that in no case such request for change in excess of ten per cent of the total strength of the group shall be granted;

(d)

Where the passengers are members of a marriage party and any person deemed to be the Head of such party, makes a request in writing 48 hours before the scheduled departure of the train that the reservation made in the name of any member of the marriage party be transferred to any other person :

Provided that any such request for change shall be granted only one :

Provided further that in no case such request for change in excess of ten per cent of the total strength of the group shall be granted.

(e)

[Where the passengers are a group of cadets of National Cadet Corps and any officer who is the Head of the group makes a request in writing at least twenty four hours before the Scheduled departure of the train that the reservation made in the name of any cadet be transferred to any other cadet;

[Inserted by G.S.R. 704(E), dated 12.12.1997]

Provided that any such request for change shall be granted only once:

Provided further that in no case such request for change in excess of ten per cent of the total strength of the group shall be granted.]

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